

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC doing business as COLONIAL
MOBILE MANOR,

Plaintiff,

vs.

Case No. 2016-CC-002268

GAYLA SUE GRIFFITHS and ANY
UNKNOWN TENANT(s),

Defendants.

**MOTION FOR FINAL DEFAULT JUDGMENT
FOR
DAMAGES, LIEN ENFORCEMENT AND JUDICIAL SALE**

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC doing business as COLONIAL MOBILE MANOR, by and through the undersigned counsel, and pursuant to Fla. R. Civ. P. 1.500 moves this Court to grant final judgment against Defendants, GAYLA SUE GRIFFITHS and ANY UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, filed suit under Florida Statute §723.061(1)(a), for removal of a mobile home park lot tenant, for possession of the Plaintiff's real property, for damages and to enforce Plaintiff's landlord lien pursuant to Florida Statutes §713.691 and §713.77.

2. Plaintiff brought this action against Defendants, GAYLA SUE GRIFFITHS and

ANY UNKNOWN TENANT(s), by personally serving upon Defendant, GAYLA SUE GRIFFITHS, a copy of the Complaint Seeking Eviction, Damages and Other Relief and a copy of the Summons at Manatee Springs Care & Rehabilitation, 5627 - 9th Street East, Bradenton, Florida, on July 14, 2016, and by posting a copy of the Complaint Seeking Eviction, Damages and Other Relief upon GAYLA SUE GRIFFITHS at the rental location of 900 - 9th Avenue East, Lot #20, Palmetto, Florida on July 20, 2016, and upon ANY UNKNOWN TENANT(S) located at 900 - 9th Avenue East, Lot #20, Palmetto, Florida, 34221 by posting a copy of same on said mobile home.

3. No answer was filed by the Defendants and no monies were deposited into the Registry of the Court.

4. A Default was filed by the Clerk against all Defendants on August 2, 2016.

5. On August 2, 2016, a Judgment in Default for Possession was entered by the Honorable K. Douglass Henderson, County Judge.

6. Defendant, GAYLA SUE GRIFFITHS, is the Registered Owner of the mobile home located at 900 - 9th Avenue East, Lot #20, Palmetto, Florida described as a **1972 mobile home, mauve in color, Vehicle Identification Number FF10004F, Title Number 0004957136**, which is located on Lot #20 of the property leased by the Plaintiff to the Defendant.

7. There are no lien holders on the mobile home known to the Plaintiff.

8. Defendant, GAYLA SUE GRIFFITHS, as tenant, owes Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, the sum of **\$4,437.19** pursuant to the Affidavit of Indebtedness of Plaintiff's Park Manager, incorporated into this Motion and attached hereto as Exhibit A.

9. Pursuant to Florida Statutes §713.691, Plaintiff is entitled to a landlord's lien against all Defendants' personal property in the possession of the Plaintiff.

10. As a result of the execution of the Writ of Possession, Plaintiff has come to be in possession of the personal property of the Defendant, GAYLA SUE GRIFFITHS, found on the Plaintiff's real property, perfecting its landlord lien.

11. The personal property belonging to Defendant, GAYLA SUE GRIFFITHS, located at 900 - 9th Avenue East, Palmetto, Florida, for which Plaintiff has perfected its landlord, is a mobile home identified as a **1972 mobile home, mauve in color, Vehicle Identification Number FF10004F, Title Number 0004957136**

12. Pursuant to Florida Statutes §45.031, Plaintiff is entitled to a judicial sale of the personal property, that is, the mobile home to satisfy its judgment against Defendants.

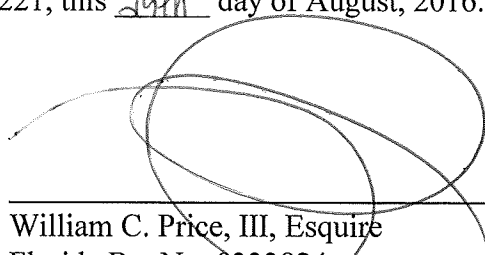
13. Pursuant to Florida Statutes §723.068, Plaintiff is entitled to an award of attorney's fees and costs by virtue of prevailing in this action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff attaches an Affidavit of Attorney's Fees, as Exhibit B, and seeks an award of \$1,500.00, along with an Affidavit of Costs, attached as Exhibit C seeking an award of \$761.26.

WHEREFORE, Plaintiff demands judgment for damages, costs, and attorney's fees in the total sum of **\$4,437.19** for a judgment entitling Plaintiff to enforce its judgment by judicial sale of the personal property of Defendant, GAYLA GRIFFITHS, and an order setting the judicial sale of Defendant's property, to-wit: a mobile home identified as a **1972 mobile home, mauve in color, Vehicle Identification Number FF10004F, Title Number 0004957136**, pursuant to Florida Statute §45.31, and to reserve jurisdiction to enter such further orders as are necessary to effectuate this judgment.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Judgment for

Damages, Lien Enforcement and Judicial Sale has been furnished by U.S. Mail to Defendant, GAYLA SUE GRIFFITHS, at the rental location of 900 - 9th Avenue East, Lot #20, Palmetto, Florida, 34221, and to GAYLA SUE GRIFFITHS c/o Manatee Springs Care and Rehabilitation, 5627 - 9th Street East, Bradenton, Florida, 34203, and ANY UNKNOWN TENANT(s), 900 - 9th Avenue East, Lot #20, Palmetto, Florida, 34221, this 29th day of August, 2016.



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